

## 26NWCV00223 26NWCV00223

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SALVADOR ZAMORA v.

CHRISTOPHER BEALL, et al.

CASE NO.: 26NWCV00223

HEARING: 8/12/26 @

9:30 AM

#2

### TENTATIVE ORDER

Defendants Christopher Beall and Dennis Bandy's demurrer to Plaintiff Salvador Zamora's complaint is sustained as to the first, third, ninth, and tenth causes of action with leave to amend.

Defendants Christopher Beall and Dennis Bandy's demurrer to Plaintiff Salvador Zamora's complaint is sustained as to the fifth, and eleventh causes of action without leave to amend.

Defendants Christopher Beall and Dennis Bandy's demurrer to Plaintiff Salvador Zamora's complaint is overruled as to the second, fourth, sixth, seventh, and eighth causes of action.

Defendants Christopher Beall and Dennis Bandy's motion to strike portions of Plaintiff Salvador Zamora's complaint is granted as to the conspiracy and alter ego allegations found in paragraphs 9-11 and 13, paragraphs 24, 25, and 62, and Prayer for Relief Items 4, 5, and 8 with leave

to amend.

Defendants Christopher Beall and Dennis Bandy's motion to strike portions of Plaintiff Salvador Zamora's complaint is denied as to paragraphs 9-11 and 13 and paragraphs 15, 28, and 29.

Defendants Christopher Beall and Dennis Bandy's motion to strike portions of Plaintiff Salvador Zamora's complaint is denied as moot as to paragraph 37, the tenth cause of action, the eleventh cause of action and Prayer for Relief Items 2 and 3.

Moving party(s) to give notice.

## BACKGROUND

On January 16, 2026, Plaintiff Salvador Zamora ("Plaintiff") filed a complaint against Defendants Christopher Beall, Dennis Bandy, Mia Santoyo, Constantino Bandy, Jr., Constantino Bandy, Sula, Inc., and MG Hospitality Group LLC. Plaintiff alleges the following causes of action: (1) fraud, (2) breach of fiduciary duty, (3) negligence, (4) breach of contract, (5) interference with contract, (6) unjust enrichment, (7) conversion, (8) accounting, (9) for money had and received, (10) constructive trust, and (11) injunctive relief.

Plaintiff alleges that he brings this action to enforce and protect his interests and thirty-five percent (35%) ownership in the company and restaurant bar business known as MG Hospitality Group LLC ("MG Hospitality").

Defendants Christopher Beall and Dennis Bandy ("Defendants") now demur to the Complaint and filed the instant demurrer on June 22, 2026.

As of August 10, 2026, no opposition has been received.

## DEMURRER

### Legal Standard

A party may object to a complaint or cross-complaint; the party may file a demurrer, an answer, or both. (Code Civ. Proc., § 430.30.) The

demurrer may be filed within 30 days after service of the complaint or cross-complaint unless extended by stipulation or court order. (Code Civ. Proc., § 430.40, subd. (a).)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Before filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41.)

#### Analysis

##### Meet and Confer

Defendants’ counsel states that on June 8, 2026, he emailed Plaintiff’s counsel and requested that he identify the basis for naming each party and that he explain why each party was included in the case. (Declaration of Evgeny Swarovski (“Swarovski Decl.”), ¶ 5.) On June 9, 2026, Plaintiff’s counsel responded by email stating that all defendants were allegedly involved in fraud and conspiracy by alter ego and joint and several liability theories. (Swarovski Decl., ¶ 6.) On June 15, 2026, Defendants’ counsel sent a meet and confer letter to Plaintiff’s counsel putting forth the arguments in the instant motion but received no response from Plaintiff’s counsel. (Swarovski Decl., ¶¶ 7, 8.) Accordingly, the Court finds that Defendants did not satisfy the meet and confer requirement, but because they attempted to meet and confer, the Court will consider the motion on the merits.

##### Uncertainty

Defendants demur to the entire Complaint on the ground that

it is uncertain, ambiguous, and unintelligible because it improperly lumps multiple defendants together and fails to allege the specific conduct, duty, contract, breach, causation, or damages attributable separately to each moving Defendant. A defendant may object by demurrer to the pleading on the grounds that a pleading is uncertain, that is, the pleading is ambiguous and unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, as modified (Aug. 13, 2019), internal citations and quotation marks omitted.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.) A demurrer should not be sustained on the ground of uncertainty regarding which defendant committed the alleged conduct, where the pleading alleged that all defendants were responsible. (Dillard v. Kern County (1943) 23 Cal.2d 271, 279.) The Court finds that the Complaint is not uncertain because it is not ambiguous or unintelligible.

The Complaint clearly alleges that both Defendants were responsible or liable for the causes of action asserted against them. Thus, the Court overrules the demurrer on the ground of uncertainty.

#### Derivative Causes of Action

Defendants argue that Plaintiff’s first, second, third, sixth, seventh, eighth, ninth, and tenth causes of action are not Plaintiff’s individual claims but are actually derivative claims since the injuries alleged belong to MG Hospitality Group LLC, not directly to Plaintiff.

The factual allegations underlying these causes of action do include allegations that Defendants embezzled money belonging to MG Hospitality (Complaint, ¶ 29); however, they also include Plaintiff’s demand for his rightful and proportionate distributions and dividends from 2023 to the present based on his 35% ownership as a member and owner of MG Hospitality (Complaint, ¶ 26). Plaintiff also alleges that Defendants disregarded Plaintiff’s rights and interests as a member and part owner of MG Hospitality, failed and refused to provide accounting and/or records to Plaintiff, failed and refused to honor, abide by, fulfill and perform under the terms of the parties’ written Agreements, failed to disclose basic operational and financial information and documentation, and excluded

Plaintiff from the operation of MG Hospitality in violation of the parties' Agreements. (Complaint, ¶ 29.) Thus, Plaintiff's claims are not derivative of MG Hospitality's claims.

#### First Cause of Action: Fraud

The elements of fraud are "(1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) justifiable reliance, and (5) resulting damage." (Conroy v. Regents of Univ. of Cal. (2009) 45 Cal.4th 1244, 1255.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. [Citations.]" (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) "This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' [Citations.]" (Ibid.)

The Court finds that Plaintiff fails to allege sufficient facts to state a fraud cause of action. Plaintiff has not alleged specific facts to show that Plaintiff's reliance was justifiable. Additionally, Plaintiff fails to allege who, how, when, where, to whom, and by what means Defendants made the misrepresentations.

Regarding the fraudulent concealment allegations, Plaintiff fails to allege facts that he would not have acted as he did if he had known of the concealed or suppressed facts alleged in paragraphs 32 and 33. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868 ["[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage".].)

Accordingly, the demurrer to the first cause of action is SUSTAINED with leave to amend.

#### Second Cause of Action: Breach of Fiduciary Duty

"The elements of a claim for breach of fiduciary duty are

(1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (O'Neal v. Stanislaus Cnty. Employees' Ret. Assn. (2017) 8 Cal. App. 5th 1184, 1215.) "A fiduciary relationship has been defined as any relation existing between parties to a transaction wherein one of the parties is ... duty bound to act with the utmost good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent." (People ex rel. Harris v. Rizzo (2013) 214 Cal.App.4th 921, 950 [internal quotations omitted].)

Pursuant to Corporations Code section 17704.09, the fiduciary duties that a member owes a member-managed limited liability company and the other members of the limited liability company are the duties of loyalty and care. This includes the duty to account to the limited liability company and hold as trustee for it any property, profit, or benefit derived by the member in the conduct of the activities of the limited liability company, to refrain from dealing with the limited liability company in the conduct of the activities of the limited liability company as or on behalf of a person having an interest adverse to it, and to refrain from competing with the limited liability. (Corp. Code, § 17704.09, subds. (a), (b).) A member's duty of care to a limited liability company and the other members in the conduct of the activities of the limited liability company is limited to refraining from engaging in grossly negligent or reckless conduct, intentional misconduct, or a knowing violation of law. (Corp. Code, § 17704.09, subd. (c).)

Here, Plaintiff alleges that Defendants are members and managers of MG Hospitality and are Plaintiff's fiduciaries under the parties Agreements (Complaint, ¶ 39.) Plaintiff alleges that Defendants breached their fiduciary duties because Defendants disregarded Plaintiff's rights and interests as a member and part owner of MG Hospitality Group, Defendants failed and refused to provide accounting and/or records to Plaintiff, Defendants failed and refused to honor, abide by, fulfill and perform under the terms of the parties' written Agreements, Defendants failed to disclose basic operational and financial information and documentation, Defendants excluded Plaintiff from the operation

of MG Hospitality in violation of the parties' Agreements, and Defendants conspired to commit breach of fiduciary duty and to shelter and conceal assets of one another. (Complaint, ¶ 41.) Plaintiff alleges that as a result of Defendants breach of their fiduciary duties, Plaintiff has been harmed. (Complaint, ¶ 42.) The Court finds that Plaintiff has alleged sufficient facts to state a claim for breach of fiduciary duty.

Accordingly, the demurrer to the second cause of action is  
OVERRULED.

Third Cause of Action:  
Negligence

The elements of negligence are: (1) defendant owed a legal duty to plaintiffs to use due care; (2) defendant breached that duty; and (3) the breach of that duty caused injury or damage to plaintiffs. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

As discussed above, Defendants as managers and members of MG Hospitality had a duty of care to Plaintiff to refrain from engaging in grossly negligent or reckless conduct, intentional misconduct, or a knowing violation of law. (Corp. Code, § 17704.09, subd. (c).) Here, Plaintiff does not allege any facts separate from Plaintiff's claim for breach of fiduciary duty, or as discussed below, Plaintiff's claim for breach of contract. Thus, Plaintiff's claim for negligence is duplicative of these causes of action.

Accordingly, the demurrer to the third cause of action is  
SUSTAINED with leave to amend.

Fourth Cause of Action: Breach  
of Contract

The elements of a breach of contract cause of action are:  
(1) existence of contract; (2) plaintiffs' performance or excuse for nonperformance; (3) defendants' breach (or anticipatory breach); and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

The Court finds that Plaintiff has alleged sufficient facts  
to state a claim for breach of contract because Plaintiff alleges that (1) the

parties entered into Agreements for the ownership, loans, and operation of MG Hospitality (Complaint, ¶ 49), (2) Plaintiff has fully performed per the terms of the parties' Agreements (Complaint, ¶ 50), (3) Defendants have breached the Agreements by disregarding Plaintiff's rights and interests as a member and part owner of MG Hospitality Group, failing and refusing to provide accounting and/or records to Plaintiff, failing and refusing to honor, abide by, fulfill and perform under the terms of the parties' written Agreements, failing to disclose basic operational and financial information and documentation, failing and refusing to pay Plaintiff any profits, dividends, distributions or loan repayments under the parties' Agreements, and excluding Plaintiff from the operation of MG Hospitality in violation of the parties' Agreements (Complaint, ¶ 51), and (4) as a result of Defendants' breach, Plaintiff has been harmed. (Complaint, ¶ 52.)

Accordingly, the demurrer to the fourth cause of action is  
OVERRULED.

Fifth Cause of Action:  
Interference with Contract

"To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage. . . . To establish the claim, the plaintiff need not prove that a defendant acted with the primary purpose of disrupting the contract, but must show the defendant's knowledge that the interference was certain or substantially certain to occur as a result of his or her action." (Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148.)

Here, Plaintiff alleges that the parties entered into Agreements for the ownership, loans and operation of MG Hospitality (Complaint, ¶ 54). Nowhere in the Complaint does Plaintiff allege he entered into a valid contract with a third party.

Accordingly, the demurrer to the fifth cause of action is  
SUSTAINED without leave to amend.



Sixth Cause of Action: Unjust  
Enrichment

“The elements of an unjust enrichment claim are the receipt of a benefit and [the] unjust retention of the benefit at the expense of another . . . . [T]he mere fact that a person benefits another is not of itself sufficient to require the other to make restitution therefor.” (Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, 1593 [internal quotations and citations omitted].)

Here, Plaintiff alleges that Defendants have collected generous salaries and excess profits from MG Hospitality while defrauding Plaintiff and mismanaging MG Hospitality. (Complaint, ¶ 60.) Because of Defendants’ withholding of monies, Defendants have been unjustly enriched. (Complaint, ¶ 61.) The Court finds that Plaintiff has alleged sufficient facts to state a claim for unjust enrichment.

Accordingly, the demurrer to the sixth cause of action is  
OVERRULED.

Seventh Cause of Action:  
Conversion

The elements for conversion are “(1) the plaintiff’s ownership or right to possession of personal property; (2) the defendant’s disposition of the property in a manner that is inconsistent with the plaintiff’s property rights; and (3) resulting damages.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “While money cannot be the subject of an action for conversion unless a specific sum capable of identification is involved, it is not necessary that each coin or bill be earmarked.” (Weiss v. Marcus (1975) 51 Cal.App.3d 590, 599.) “[A] cause of action for conversion of money can be stated only where a defendant interferes with the plaintiff’s possessory interest in a specific, identifiable sum”; ‘the simple failure to pay money owed does not constitute conversion.’” (Voris v. Lampert (2019) 7 Cal.5th 1141, 1151.)

Here, Plaintiff alleges (1) that he is the owner of 35% of the profits of MG Hospitality (Complaint, ¶ 64), (2) Defendants improperly withheld Plaintiff’s profits from MG Hospitality by embezzling funds, miscalculating and misrepresenting the amount due to Plaintiff, and by refusing

to tender payment of profits to Plaintiff (Complaint, ¶ 65), without Plaintiff's consent (Complaint, ¶ 66), and (3) as a result, Plaintiff has been deprived of his proper profits. (Complaint, ¶ 67.) The Court finds that Plaintiff has alleged sufficient facts to state a cause of action for conversion.

Accordingly, the demurrer to the seventh cause of action is  
OVERRULED.

Eighth Cause of Action:

Accounting

"A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting." (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179.)

Here, Plaintiff alleges that under the terms of the parties' Agreements, Defendants are Plaintiff's fiduciaries (Complaint, ¶ 69), and because of the intentional misrepresentations of Defendants it is impossible to determine how much money is owed to Plaintiff without an accounting. (Complaint, ¶ 71.) The Court finds that Plaintiff has alleged sufficient facts to state a claim for accounting

Accordingly, the demurrer to the eighth cause of action is  
OVERRULED.

Ninth Cause of Action: For Money

Had and Received

"A cause of action for money had and received is stated if it is alleged the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff." (Farmers Ins. Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460 [internal quotations omitted].)

Here, Plaintiff fails to allege that a certain sum of money was had and received by Defendants. The Court finds that Plaintiff has not alleged sufficient facts to state a cause of action for money had and received.

Accordingly, the demurrer to the ninth cause of action is  
SUSTAINED with leave to amend.

Tenth Cause of Action:  
Constructive Trust

“A cause of action for constructive trust is not based on the establishment of a trust, but consists of fraud, breach of fiduciary duty or other act which entitles the plaintiff to some relief. Relief, in a proper case, may be to make the defendant a constructive trustee with a duty to transfer to the plaintiff. . . . Pleading requirements are: (1) facts constituting the underlying cause of action, and (2) specific identifiable property to which defendant has title.” (Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.)

Here, Plaintiff alleges that all profits received by Defendants from any account because of the breach of their duties should be held by Defendants as constructive trustees for Plaintiff's benefit. (Complaint, ¶ 77.) However, Plaintiff has not alleged that he is entitled to all profits of MG Hospitality. The Court finds that Plaintiff has not adequately stated a cause of action for constructive trust.

Accordingly, the demurrer to the tenth cause of action is  
SUSTAINED with leave to amend.

Eleventh Cause of Action:  
Injunctive Relief

Injunctive relief is a remedy, not a cause of action. (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 65–66 [“Although the order sustaining the demurrer was proper because an injunction is not a cause of action, plaintiffs may still obtain injunctive relief if they prevail on a cause of action”].)

Accordingly, the demurrer to the eleventh cause of action is  
SUSTAINED without leave to amend.

MOTION TO STRIKE

Defendants move to strike paragraphs 9-11, 13, 15, 24, 25, 28, 29, 37, 43, and 62, prayer for relief item 10, tenth cause of action and prayer for relief item 2, eleventh cause of action and prayer for relief items 3-5, and prayer for relief item 8.

Given the Court's ruling above, the motion to strike paragraph 37, the tenth cause of action, the eleventh cause of action, and Prayer for Relief Items 2 and 3 is DENIED as MOOT.

Paragraphs  
9, 10, 11, and 13

Defendants argue that the conspiracy allegations should be stricken because the complaint alleges a conspiracy in boilerplate terms but does not plead facts showing when the alleged agreement was made, who participated, what each participant agreed to do, or what specific overt act each moving Defendant committed.

"In order to state a cause of action based upon a conspiracy theory the plaintiff must allege the formation and operation of the conspiracy, the wrongful act or acts done pursuant to it, and the damage resulting from such acts. [Citation.] In making such allegations bare legal conclusions, inferences, generalities, presumptions, and conclusions are insufficient." (State of California ex rel. Metz v. CCC Information Services, Inc. (2007) 149 Cal.App.4th 402, 419 [internal quotations omitted].) Here, Plaintiff fails to allege any facts to support a conspiracy.

The motion to strike allegations regarding conspiracy found in paragraphs 9, 10, and 13 is GRANTED.

To allege alter ego, plaintiffs must plead a unity of interest and ownership such that the separate personalities of the corporation and individuals do not exist, and that an inequity will result if the corporate entity is treated as the sole actor. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal. App. 4th 1269, 1285.) Here, Plaintiff fails to allege any facts to support alter ego liability; that is, no facts show a unity of interest and ownership of MG Hospitality. The motion to strike allegations regarding alter ego liability found in paragraphs 9 through 11 is GRANTED.

As to the agency allegations, "[t]he general allegation of

agency is one of ultimate fact, sufficient against a demurrer.” (Kiseskey v. Carpenters' Trust for So. California (1983) 144 Cal.App.3d 222, 230.) Here, Plaintiff allegations of agency in paragraphs 9, 10, 11, and 13 are sufficient. The motion to strike paragraphs 9, 10, 11, and 13 is DENIED in its entirety.

#### Paragraph 15

Paragraph 15 alleges “that reasonable discovery and investigation will reveal the dates, times, and persons ... who communicated with Plaintiff; the content of those conversations ... that form the basis of Plaintiffs claims.” “Plaintiff alleges that such discovery and investigation will allow Plaintiff to successfully amend this Complaint to satisfy the requisite specificity for the allegations contained herein.” Defendants have not articulated grounds for striking this paragraph. The motion to strike paragraph 15 is DENIED.

#### Paragraphs 24 and 25

Paragraphs 24 and 25 relate to access to company and business location, services, records, accounts and banks statements. Defendants argue that these allegations seek operational control and credential access through a damages complaint without properly pleaded facts supporting provisional, injunctive, receivership, or statutory relief against the moving Defendants personally. The Court agrees. The motion to strike paragraphs 24 and 25 is GRANTED with leave to amend.

#### Paragraphs 28 and 29

Paragraphs 28 and 29 relate to distributions, dividends and tax records. Defendants argue that these allegations concern company-level harm but Plaintiff does not plead derivative standing or compliance with the statutory requirements for an LLC derivative claim. The Court finds that Plaintiff makes these allegations to show Defendants' actions, not to bring a derivative claim. The motion to strike paragraphs 28 and 29 is DENIED.

Paragraphs 43 and 62 and Prayer  
for Relief Item 10

Paragraphs 43 and 62 and Prayer for Relief Item 10 allege punitive damages. "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Civil Code section 3294 authorizes punitive damages upon a showing of malice, fraud, or oppression. Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 331.) Fraud under Civil Code section 3294 subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." Civil Code section 3294 subdivision (c)(2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." Specific facts must be alleged in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) Here, the Complaint fails to plead specific facts showing that Defendants acted with malice, oppression, or fraud within the meaning of Civil Code section 3294. The motion to strike paragraphs 43 and 62 and Prayer for Relief Item 10 is GRANTED with leave to amend.

Prayer for Relief Items 4 and 5

Prayer for Relief Items 4 and 5 relate to the appointment of a receiver and an appraisal and buyout. Defendants argue that the Complaint does not plead facts establishing entitlement to extraordinary provisional relief against Defendants personally. The Court finds that Plaintiff fails to allege facts to support the appointment of receiver and an appraisal and buyout. The motion to strike Prayer for Relief Items 4 and 5 is GRANTED with leave to mend.

Prayer for Relief Item 8

Prayer for Relief Item 8 relates to attorney's fees. Defendants argue that the Complaint does not identify any contractual provision or statute authorizing attorney's fees against Defendants. The Court agrees. The motion to strike Prayer for Relief Item 8 is GRANTED with leave to amend.

#### Conclusion

The Court sustains the demurrer to the first, third, ninth, and tenth causes of action with leave to amend.

The Court sustains the demurrer to the fifth, and eleventh causes of action without leave to amend.

The Court overrules the demurrer to the second, fourth, sixth, seventh, and eighth causes of action.

The Court grants the motion to strike: conspiracy and alter ego allegations found in paragraphs 9-11 and 13, paragraphs 24, 25, and 62, and Prayer for Relief Items 4, 5, and 8 with leave to amend.

The Court denies the motion to strike the rest of paragraphs 9-11 and 13 and paragraphs 15, 28, and 29.

The Court denies as moot the motion to strike paragraph 37, the tenth cause of action, the eleventh cause of action and Prayer for Relief Items 2 and 3.